

4. **23CV00528 Rosinski, Melinda et al v. Piercey, Matthew, et al.**

EVENT: Plaintiffs' Motion to Compel Requests for Production to Rodney Piercey Set No. 1 and Request for Sanctions

This discovery motion, along with all pending and future discovery motions is referred to the selected discovery referee, Douglas Robbins, Esq.

5. **25CV00962 Kelly Boslow, Successor in Interest to Jo M Pulos et al v. Golden Roseleaf LLC et al.**

EVENT: Motion for Leave to Amend Complaint

Motion for Leave to Amend Complaint is GRANTED.

The Court notes that the proof of service fails to comply with CCP 1013a in that it does not state who was served and at what address. However, because Defendants have yet to appear, no notice is required, see CCP 1014.

Also, in the event future motions to amend are filed, such motions should comply with the requirements of CRC 3.1324.

The Court will sign the proposed order.

6-7. 25CV04127 Wells Fargo Bank, N.A. v. Dashler, Cassandra O

EVENT: (1) Plaintiff's Motion for Judgment on the Pleadings

(2) Case Management Conference

Plaintiff's Motion for Judgment on the Pleadings is GRANTED. The Court will sign the proposed order and judgment. The Case Management Conference is vacated.

8. 25CV04208 Curtis-Brown, Stephanie v. Marple, Larry et al

EVENT: Plaintiff's Motion for Deemed Admissions and Request for Sanctions (Continued from 6/3/26)

Plaintiff's Motion for Deemed Admissions is moot in light of the responses provided while this motion was pending. The Court finds the responses were untimely and as a result all objections are waived.

Regarding sanctions, Defendant contends that a simple phone call would have eliminated the need to file this motion. Technically, no meet and confer is required when no responses have been provided, as was the case here. However, as we have seen in the past, if a party decides to file a motion without meeting and conferring, and it turns out there was a legitimate reason for the delayed response, we have in the past denied sanctions in appropriate circumstances.

These circumstances are more nuanced because Defendant had already received a generous 30 day extension to respond to the discovery. Ms. Savage's position that they could have simply picked up the phone and called is undermined by the fact she had already received a 30 day extension.

Nevertheless, the request for sanctions is denied. While the Court finds Plaintiff was justified in filing this motion (counsel had previously provided a 30 day extension), the unexpected medical issues encountered by defense counsel leading up to and after the responsive deadline warrant the denial of sanctions.

9. 25CV05125 Duckett, Heather v. Foremost Insurance Company et al.

EVENT: Demurrer to Plaintiff Heather Duckett's Complaint

In light of the filing of the First Amended Complaint, the motion is moot.